

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kevin Kabadi	Team: Squad #02	CCRB Case #: 202309646	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 10/12/2023 6:40 PM	Location of Incident: East 97th Street, between 2nd Avenue and 3rd Avenue	18 Mo. SOL 4/12/2025	Precinct: 23		
Date/Time CV Reported Thu, 10/12/2023 11:04 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 10/12/2023 11:04 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Juan Quiroz	00000	939263	023 PCT
2. DTS Vincent Pinto	01454	934068	023 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DTS Vincent Pinto	Abuse: Detective Vincent Pinto refused to provide his name to § 87(2)(b)	
B . DTS Vincent Pinto	Abuse: Detective Vincent Pinto refused to provide his shield number to § 87(2)(b)	
C . LT Juan Quiroz	Abuse: Lieutenant Juan Quiroz failed to provide § 87(2)(b) with a business card.	
D . LT Juan Quiroz	Abuse: Lieutenant Juan Quiroz refused to provide his name to § 87(2)(b)	
E . LT Juan Quiroz	Discourtesy: Lieutenant Juan Quiroz acted discourteously toward § 87(2)(b)	
F . LT Juan Quiroz	Abuse: Lieutenant Juan Quiroz interfered with § 87(2)(b) use of a recording device.	
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On October 12, 2023, § 87(2)(b) filed this complaint on the CCRB's website (BR 01).

At approximately 6:40 p.m. on October 12, 2023, Lieutenant Juan Quiroz, and Detective Vincent Pinto of the 23rd Precinct were speaking with § 87(2)(b) whom they were investigating for operating a moped without a license plate on East 97th Street, between 2nd Avenue and 3rd Avenue, in Manhattan. § 87(2)(b) approached the officers, began recording the incident on his phone, and requested Detective Vincent Pinto's name and badge number. Lieutenant Quiroz interjected and allegedly said, "We're not going to provide this information during an investigation. Please hold on" (Allegation A: Abuse of Authority – Refusal to provide name, Within NYPD Guidelines) (Allegation B: Abuse of Authority – Refusal to provide shield number, Within NYPD Guidelines). § 87(2)(b) asked Lieutenant Quiroz for his name, badge number and business card and Lieutenant Quiroz allegedly responded, "I'm not going to give you nothing." (Allegation C: Abuse of Authority – Failure to provide RTKA card, Within NYPD Guidelines) (Allegation D: Abuse of Authority – Refusal to provide name, Within NYPD Guidelines). As a back-and-forth exchange ensued between Lieutenant Quiroz and § 87(2)(b), Lieutenant Quiroz allegedly slapped § 87(2)(b) phone out of his hand (Allegation E: Discourtesy – Action, substantiated) (Allegation F: Abuse of Authority – Interference with Recording, substantiated)

§ 87(2)(g), § 87(4-b)

The investigation received body-worn camera ("BWC") videos from the BWCs of Lieutenant Quiroz and Detective Pinto (BR 02). The videos are in IA#25 and summarized in IA#34 (BR 03).

§ 87(2)(b) also provided the video footage he shot of the incident, which are in IA#s 14 – 16 (BR 13, 14, and 15) and are summarized in IA#17 (BR 16).

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Vincent Pinto refused to provide his name to

§ 87(2)(b)

Allegation (B) Abuse of Authority: Detective Pinto refused to provide his shield number to

§ 87(2)(b)

Allegation (C) Abuse of Authority: Lieutenant Juan Quiroz failed to provide § 87(2)(b)

with a business card.

Allegation (D) Abuse of Authority: Lieutenant Juan Quiroz refused to provide his name to

§ 87(2)(b)

§ 87(2)(b) was interviewed by the CCRB on October 10, 2023 (BR 04). Lieutenant Juan Quiroz was interviewed by the CCRB on January 29, 2024 (BR 05).

§ 87(2)(b) stated that, as he exited a nearby mosque, he saw Lieutenant Quiroz and Detective Pinto interacting with § 87(2)(b) which prompted § 87(2)(b) to record the encounter. While recording, § 87(2)(b) said, "I want your name and badge number" to Detective Pinto. Detective Pinto appeared willing to provide his information to § 87(2)(b) but Lieutenant Quiroz interjected and said, "We're not going to provide that information during the investigation. Please hold on." Further into the incident § 87(2)(b) requested Lieutenant Quiroz's name, badge number and a business card. Lieutenant Quiroz replied, "I'm not going to give you nothing."

Towards the end of the incident, when § 87(2)(b) began walking away, Lieutenant Quiroz called him back and said, “Hold on come back here!” § 87(2)(b) replied “Fuck you. I’m leaving. My mans is off.”

Lieutenant Quiroz stated that he noticed § 87(2)(b) approaching him and Detective Pinto approximately two minutes after they initiated their investigation into § 87(2)(b) moped. § 87(2)(b) began recording Lieutenant Quiroz, Detective Pinto, and the individual with the moped on his cell phone. When § 87(2)(b) got too close to Detective Pinto, Detective Pinto told § 87(2)(b) “Take a couple steps back.” After § 87(2)(b) stepped back, he requested Detective Pinto’s shield number and information. As Detective Pinto began providing his information to § 87(2)(b) Lieutenant Quiroz interjected and said, “He can get our information when we’re done” because they were in the middle of interacting with the individual with the moped. After Lieutenant Quiroz and Detective Pinto completed the stop, Lieutenant Quiroz went back to his vehicle and told § 87(2)(b) not to leave because he was going to provide him with the information, he requested earlier but § 87(2)(b) left the scene.

In Detective Pinto’s BWC (**BR 07**), after § 87(2)(b) approaches and begins recording Lieutenant Quiroz and Detective Pinto, at timestamp 2:11, § 87(2)(b) asks Detective Pinto, “Name and badge number officer?” Detective Pinto replies “Mine? 1454.” As Detective Pinto is speaking, Lieutenant Quiroz interjects and says “Not now. When we’re done.”

In Lieutenant Quiroz’s BWC (**BR 08**), starting at timestamp 6:21, § 87(2)(b) asks Lieutenant Quiroz “What’s your name Lieutenant? What’s your name Lieutenant? This is what my tax dollars are paying for? For you to come out here and target someone who’s making livelihood making deliveries on a scooter that’s what you guys are doing?” Lieutenant Quiroz responds, “That pisses you off?” § 87(2)(b) responds “I’m sorry? Yeah! That pisses me the hell off.” At timestamp 6:40, § 87(2)(b) says, “I’m going to ask for your business card now” Lieutenant Quiroz responds, “I’m going to give you that information when I’m done.” § 87(2)(b) responds, “I’m asking for your business – I’m waiting for it right now.” Lieutenant Quiroz replies, “You will get it. You will get it, not right now. When we’re done with him.” § 87(2)(b) says, “No you are a civil servant. You left that conversation entirely. So, I’m asking for your name and badge number.” Lieutenant Quiroz responds, “You will get it.” § 87(2)(b) responds “I’m asking for it now. It’s not when you want to give it to me. It’s not when you want to give it to me. It’s not based on your convenience. It’s not your convenience.” At timestamp 7:20 § 87(2)(b) asks again, “Name and badge number officer?” Lieutenant Quiroz responds, “I won’t give you nothing until we’re done with him.” Lieutenant Quiroz walks to the police vehicle and, at timestamp 8:50, Lieutenant Quiroz says to Detective Pinto, “I need a business card. Yes, I have to give him my information.” At timestamp 9:00, § 87(2)(b) is seen walking away. Lieutenant Quiroz says, “Don’t leave yet. Yo! My man don’t leave yet. I got to give you, my information.” § 87(2)(b) does not respond to Lieutenant Quiroz and continues walking away.

Administrative Guide Procedure 304-11 (**BR 09**) states that officers must courteously and clearly state their rank, name, shield number and command or otherwise provide them, to anyone who requests it after an officer concludes law enforcement activities.

It is undisputed that § 87(2)(b) requested Detective Pinto and Lieutenant Quiroz’s identifying information while they were engaged in a law enforcement activity, was told to wait until the end of the law enforcement activity to receive the enforce, but then walked away before receiving the information and refused to come back for it. BWC footage shows that Detective Pinto provided his shield number to § 87(2)(b) before Lieutenant Quiroz interjected and instructed him to wait until they concluded their law enforcement activity before providing their information to § 87(2)(b).

§ 87(2)(g)

it is recommended that **Allegations A, B, C, and D** be closed as **Within NYPD Guidelines**.

Allegation (E) Discourtesy: Lieutenant Juan Quiroz acted discourteously toward § 87(2)(b).

Allegation (F) Abuse of Authority: Lieutenant Juan Quiroz interfered with § 87(2)(b).
use of a recording device.

§ 87(2)(b) stated that, as he was recording the incident, during his back-and-forth exchange with Lieutenant Quiroz, Lieutenant Quiroz aggressively slapped his phone out of his right hand and then proceeded to grab § 87(2)(b) wrist.

Lieutenant Quiroz stated that, after he approached § 87(2)(b) placed his phone on Lieutenant Quiroz's shield and then his face, which prompted Lieutenant Quiroz to take one step back and then to the side because he believed that at that point § 87(2)(b) compromised his zone of safety. Moments later, § 87(2)(b) moved toward Lieutenant Quiroz and placed his cell phone near Lieutenant Quiroz's face a second time. Lieutenant Quiroz then used the least amount of force necessary to grab § 87(2)(b) wrist and put it to the side but did not slap § 87(2)(b) phone.

§ 87(2)(b) first cell-phone video (**BR 13**) begins as he approaches Detective Pinto, Lieutenant Quiroz, and the unidentified male. § 87(2)(b) stands close to them in the street, and Detective Pinto informs him that he is standing too close. § 87(2)(b) then requests Detective Pinto's name and shield number. Lieutenant Quiroz interjects and says that they will provide their information when they are done. Detective Pinto then tells § 87(2)(b) again, "Back up a little because you're too close. You can film from over there but now you're getting on top of me and you're in my space." The recording ends while the officers are still speaking with the male and examining his moped.

Detective Pinto's BWC footage (**BR 07**) captures the sequence described above in § 87(2)(b) first cell-phone video starting at the 2:08 timestamp. Subsequently, at timestamp 5:35, while § 87(2)(b) is now standing on the sidewalk and not recording the incident, Lieutenant Quiroz, who was standing on the street, walks toward § 87(2)(b) and stands about an arm's length away from him on the sidewalk and they engage in a back-and-forth conversation. At timestamp 6:28, § 87(2)(b) takes his cellphone out of his pocket, but does not begin recording his back-and-forth exchange with Lieutenant Quiroz until timestamp 7:09. At 7:13 Lieutenant Quiroz takes a step to the side of § 87(2)(b) but remains about the same distance away from him. While § 87(2)(b) is recording the incident and arguing with Lieutenant Quiroz, between timestamps 7:35 to 7:45, while § 87(2)(b) is moving the phone around, near Lieutenant Quiroz's face, Lieutenant Quiroz grabs the area between § 87(2)(b) forearm and elbow and pushes it down and then says, "Don't put that phone in my face." This causes § 87(2)(b) phone to fall out of his right hand, but he catches it with his left hand and continues recording.

Lieutenant Quiroz's BWC footage (**BR 08**) captures the back-and-forth exchange between § 87(2)(b) and Lieutenant Quiroz between the timestamps 5:09 to 8:00. Lieutenant Quiroz asks § 87(2)(b) "Good?" § 87(2)(b) responds, "Are you?" Lieutenant Quiroz responds,

“You know? You’re having a bad day man.” § 87(2)(b) responds, “I come outside, and I see my Muslim brother being harassed by the NYPD. That’s why I am having a bad day.” At timestamp 5:22, Lieutenant Quiroz approaches § 87(2)(b) and says, “So you say you’re having a great day, right? And now you’re having a bad day?” § 87(2)(b) responds, “Because you’re targeting my brother who’s coming out of his prayer right now who makes his livelihood on this scooter and you’re coming outside here targeting him. When there’s real crimes being committed.” Lieutenant Quiroz asks, “What crimes?” and § 87(2)(b) responds, “I don’t know. Why don’t you go to the neighborhood and take a look. At timestamp 5:47, § 87(2)(b) says, “Look I just want to get some distance between us yea, I am very concerned.” as he says this Lieutenant Quiroz says, “You seem to be very concerned.” At timestamp 6:57 § 87(2)(b) holds up his phone and asks for Lieutenant Quiroz’s name and badge number. At timestamp 7:02 Lieutenant Quiroz asks § 87(2)(b) “Do you take medications? Do you take medications? You take medications?” as § 87(2)(b) is speaking. § 87(2)(b) responds, “Do I? Do you take medications?” Lieutenant Quiroz responds, “You seem too unreasonable right now.” § 87(2)(b) asks, “Are you taking medications? Are you unstable?” At timestamp 7:32, Lieutenant Quiroz says, “Don’t put that phone in my face.” Then § 87(2)(b) responds, “Oh look at that! Look at that! He just grabbed my hand! Look at that! Look at that! He just grabbed my hand.” At timestamp 7:45, § 87(2)(b) asks, “Why did you just put your hands on me? Lieutenant why did you just put your hands on me? Lieutenant why did you just put your hands on me?” Lieutenant Quiroz responds, “Because you put your phone in my face. You can’t do that.”

Patrol Guide Procedure 200-02 (BR 10) states that officers must perform their duties with “courtesy and civility,” and they must “respect the dignity of each individual” with whom they interact. It notes that officers are to “maintain a higher standard of integrity than is generally expected of others.”

Administrative Guide Procedure 304-21 (BR 18) states that individuals have a right to lawfully observe and/or record police activity. The right to observe or record can be limited for reasons such as safety of officers or other members of the public.

§ 87(2)(g)
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While Lieutenant Quiroz was standing in the street, he walked up to § 87(2)(b) who had stopped recording and was standing on the sidewalk. When the back-and-forth exchange ensued between § 87(2)(b) and Lieutenant Quiroz, § 87(2)(b) pulled out his phone and began recording the incident again. For the duration of § 87(2)(b) and Lieutenant Quiroz’s back-and-forth exchange, their conversation remained relatively civil up until the point Lieutenant Quiroz pushed § 87(2)(b) hand. Further into their exchange, Lieutenant Quiroz did not react when § 87(2)(b) moved his phone closer to Lieutenant Quiroz’s chest area to record his badge. § 87(2)(g)
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It is therefore recommended that **Allegations E and F** be **substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- Lieutenant Quiroz has been a member of service for 18 years and has been a subject in 17 CCRB complaints and 35 allegations, of which 8 were substantiated in three cases:
 - 200914325 involved substantiated allegations of retaliatory summons, stop, and threat of force against Lieutenant Quiroz. The Board recommended charges and the NYPD imposed Command Discipline – B.
 - 200918246 involved a substantiated allegation of gun pointed against Lieutenant Quiroz. The Board recommended charges but the NYPD declined to prosecute and imposed no disciplinary action.
 - 202100260 involved substantiated allegations of frisk and question against Lieutenant Quiroz. The Board recommended charges and the NYPD imposed a forfeiture of 3 vacation days and a Command Discipline A.
- Detective Pinto has been a member of service for 20 years and has been a subject in 9 CCRB complaints and 25 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of February 29, 2024, the New York City Office of the Comptroller had no record of a Notice of Claim being filed in regard to this incident (**BR 11**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 2

Investigator:	<u>Kevin Kabadi</u>	<u>Investigator Kevin Kabadi</u>	<u>03/18/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Alexander Opoku-Agyemang</u>	<u>IM Opoku-Agyemang</u>	<u>1/7/2025</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date